

101	City of Westminster vs. Morgan 24-01417499	Defendant demurs to the entire First Amended Complaint, asserting all claims arise from overpayment of workers' compensation benefits and, consequently, fall within the jurisdiction of the workers' compensation appeals board. Pursuant to Labor Code sections 5300, subdivision (a), a proceeding "[f]or the recovery of compensation, or concerning any right or liability arising out of or incidental thereto," shall be instituted before the appeals board and not elsewhere. (Lab. Code, § 5300, subd. (a).) Pursuant to Labor Code section 3207, "compensation" means "compensation under this division" including "every benefit or payment conferred by this division upon an injured employee...." (Lab. Code, § 3207.) Neither Defendant nor the Complaint identify a particular provision within the workers' compensation statutory scheme, from which the "Salary Continuation" payments received by Defendant arise. Instead, the Complaint alleges these payments were made pursuant to a policy of the City. "Pursuant to the City's policy ('Salary Continuation'), 'Non-sworn employees shall be entitled to a temporary disability at a maximum of six (6) months paid leave for job connected illness or injury, unless disability becomes permanent and stationary prior to the expiration of six (6) months, such time not to be charged against sick leave or vacation. If disability exceeds six (6) months, employee may elect to receive only workers' compensation benefits, or have sick leave or vacation charged for the difference between the workers' compensation and his/her regular salary and receive a full paycheck, not to exceed the maximum disability period allowed under Workers' Compensation Law.' Therefore, an employee can receive a total of 26 weeks of Salary Continuation at 75% of their salary." (§6 of FAC.) Additionally, the Complaint distinguishes between "Salary Continuation" payments and workers' compensation, alleging Defendant
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		received payments through both. (§11 of FAC.) Pursuant to Labor Code section 3750, subdivision (d), the workers' compensation statutory scheme does not affect "[t]he right to provide by mutual or other insurance, or by arrangement with his employees, or otherwise, for the payment to such employees...of sick, accident, or death benefits, in addition to the compensation provided for by this division." Additionally, as noted by Plaintiff, "[p]ayment of workmen's compensation liability, as required by the state act, and payment of compensation benefits over and beyond the liability imposed by the state are...distinguishable." (<i>City etc. of San Francisco v. Workmen's Comp. App. Bd.</i> (1970) 2 Cal.3d 1001, 1010.) "[A] voluntary wage payment, or any other payment otherwise provided for outside of the workers' compensation law, is not a payment 'under' the workers' compensation law merely because the law prevents double recovery for the same injury." (<i>Department of Corrections and Rehabilitation v. Workers' Compensation Appeals Board</i> (2025) 17 Cal.5th 510, 563 P.3d 1099, 1109.) "In the construction of a pleading, for purposes of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Civ. Proc., § 452.) Additionally, in reviewing a demurrer, the Court "treat[s] the demurrer as admitting all material facts properly pleaded" and "give[s] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) Based on the allegations within the complaint, the payments in dispute do not constitute "compensation" for purposes of workers' compensation, as the payments were made pursuant to City policy. (§16 of FAC.) Based on the allegations, subject matter jurisdiction properly lies with the Court. Thereafter, Defendant challenges the sufficiency of the first cause of action for unjust enrichment; however, as Defendant demurred only to the complaint as a whole,
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the Court need not review this argument: "The general well settled rule is that if any count of a multicount complaint states a cause of action, it is error to sustain a demurrer to the complaint as a whole." (*Western Title Ins. & Guaranty Co. v. Bartolacelli* (1954) 124 Cal.App.2d 690, 694.)

Additionally, while a split in authority exists as to whether "unjust enrichment" is the technically correct label, California authority has recognized that "[c]ommon law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient." (*Munoz v. MacMillan* (2011) 195 Cal.4th 648, 661.)

"Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred "is an obligation (not a true contract [citation]) created by the law without regard to the intention of the parties, and is designed to restore the aggrieved party to his or her former position by return of the thing or its equivalent in money." ' ' ' (*Ibid.*)

Here, Plaintiff adequately alleges Defendant was overpaid funds and has unjustly retained the benefit thereof. (§15-§18 of FAC.)

"If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Based on all the above the demurrer is OVERRULED.

Defendant shall file and serve her Answer to the Complaint within 20 days.

The Case Management Conference is continued to May 29, 2025 at 1:30 p.m.

Plaintiff to give notice.

102	Nguyen vs. Botros 24-01400928	Defendant, Dina Moussa, D.D.S. moves for an order sustaining her demurrer to the second cause of action of Plaintiff, Michelle Nguyen's First Amended Complaint. Dr. Moussa also moves for an order striking Plaintiff Michelle Nguyen's First Amended Complaint in its entirety, or alternatively, striking the punitive damage claim at paragraph 14(a)(2). "If the complaint is amended, a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby. The defendant shall answer the amendments, or the complaint as amended, within 30 days after service thereof, or such other time as the court may direct, and judgment by default may be entered upon failure to answer, as in other cases" (Code Civ. Proc. § 471.5.) Here, while it appears that Plaintiff, Michelle Nguyen, served a First Amended Complaint, no First Amended Complaint appears to have been filed with the Court. Because it appears that Plaintiff has not filed the First Amended Complaint with the Court, the Court is unable to rule on a pleading that is not part of the court's record. It appears that a motion to amend the complaint was attempted to be filed and rejected in December 2024. Since there is no first amended complaint, the demurrer and motion to strike the first amended complaint are taken off-calendar. <i>Clerk to give notice.</i>
103	Brown vs. Flagship Post Acute, LLC 24-01413162	Defendant Flagship Post Acute, LLC dba Pelican Ridge Post Acute (erroneously named dba Sun Mar Health Care) ("Defendant" or "FLAGSHIP") seeks an order compelling Plaintiff Patricia Brown ("Plaintiff") to arbitrate the controversy alleged in the Complaint. Defendant contends that Plaintiff entered into a binding voluntary arbitration agreement with Defendant on August 6, 2021, but Plaintiff has refused to submit to arbitration. Plaintiff contends that there is no agreement to arbitrate because Plaintiff denies ever signing